

		[Motion Type]
01346315	Hill - Probate	TENTATIVE RULING Case: Hill - Probate 01346315 Calendar No.: 5 Date: 07/15/2026 MOTIONS TO COMPEL FURTHER RESPONSES TO DISCOVERY AND MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROAs 464, 465, 466) Maurcus Washington brings three discovery motions: a motion to deem admitted request for admissions; a motion to compel responses to form interrogatories; and a motion to compel responses to requests for production of documents. <u>Re Service of Discovery</u> The evidence before the court is that Mr. Washington's counsel propounded firsts sets of requests for admission, form interrogatories, and requests for production of documents on Beatriz Johnson on 2/25/26 via electronic service. (Friedman Decls., ¶¶ 3-4 and Exs. A and B.) Ms. Johnson is a self-represented party. Her attorney substituted out of the case on 5/6/25 (ROA 128), nearly nine months before the discovery was served. Self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court., Rule 2.251(c)(3)(B).) Express consent to receive electronic service may be given in one of two ways: (1) by filing and serving a notice of consent, or (2) by affirming consent through an electronic filing service provider. (Code Civ. Proc. § 1010.6(c)(3).) In his moving papers, Mr. Washington states that Ms. Johnson "revoked" her consent to electronic service in the process of meeting and conferring over the subject discovery. However, the court's records do not reflect that Ms. Johnson ever expressly consented to electronic service.

While represented by counsel, Ms. Johnson was mandated to receive electronic service. (Code Civ. Proc. § 1010.6(b)(2).) However, upon becoming self-represented, Ms. Johnson was no longer required to receive electronic service. Moreover, Ms. Johnson was not required to revoke the mandatory consent once her attorney substituted out. Only someone who has expressly opted in to receive electronic service is required to expressly opt out. (Code Civ. Proc. § 1010.6(c)(4).)

Thus, the subject discovery was not properly served on Ms. Johnson.

On 7/8/26, counsel for Mr. Washington filed notices of non-opposition which indicate that Ms. Johnson has since served unverified responses to form interrogatories and verified responses to requests for admission. (ROA 547 and 549.) Thus, as to such discovery, Ms. Johnson has waived defective service.

MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES (ROA 464)

Code of Civil Procedure section 2030.290(b) provides that “[i]f a party to whom interrogatories are directed fails to serve a timely response...[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.”

After the filing of this motion, Ms. Johnson served unverified responses to form interrogatories. (ROA 547.) Such act waived defective service. Nonetheless, as to the substance of the responses, unverified responses are tantamount to no response at all. (*Melendez v. Superior Ct.* (2013) 215 Cal.App.4th 1343, 1348.)

Based on the foregoing, Mr. Washington’s motion to compel responses to form interrogatories is **GRANTED**.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civil Procedure section 2030.290(c).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested

discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, Rule 3.1348(a).)

In connection with the motion to compel further responses to form interrogatories, the court imposes reasonable sanctions of **\$2,460** against Ms. Johnson, payable to Lora S. Friedman, A Professional Law Corporation, within 30 days of notice of ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.

**MOTION TO DEEM REQUESTS FOR ADMISSION
ADMITTED (ROA 466)**

On 7/8/26, Mr. Washington filed a Notice of Non-Opposition and informed the court that Ms. Johnson served Code compliant responses to the requests for admission on 7/7/26. (ROA 549.) Mr. Washington concedes that said service renders the instant motion to compel moot pursuant to Code of Civil Procedure section 2033.280(c).

“It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc. § 2033.280(c).)

In connection with the motion to deem requests for admission admitted, the court imposes reasonable sanctions of **\$2,460** against Ms. Johnson, payable to Lora S. Friedman, A Professional Law Corporation, within 30 days of notice of ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.

**MOTION TO COMPEL RESPONSE TO REQUEST FOR
PRODUCTION (ROA 465)**

Code of Civil Procedure section 2031.300(b) provides that “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it...[t]he party making the demand may move for an order compelling response to the demand.”

As discussed above, service of the request for production of documents was improperly served on Ms. Johnson electronically. Mr. Washington’s counsel has informed the court that Ms. Johnson has not served a timely response to the request for production, to date. (ROA 551.) Thus, Ms. Johnson has not waived improper service of the requests for production of documents.

		Moreover, the failure to file a written opposition or appear at the hearing cannot be deemed an admission that the motion was proper or that sanctions should be awarded. (Cal. Rules of Court, Rule 3.1348(B).) The motion to compel further responses to requests for production is DENIED. Counsel for Mr. Washington is ordered to serve notice of ruling on all three motions.
01430606	Collins - Trust	TENTATIVE RULING Case: Collins - Trust 01430606 Calendar No.: 6 Date: 07/15/2026 MOTION FOR LEAVE TO AMEND (ROA 50) Petitioner Guy Collins ("Petitioner") moves for leave to amend his First Amended Petition and file the proposed Second Amended Petition attached as Exhibit A to the moving papers. The motion is opposed by Respondent Kelly Collins ("Respondent"). <u>Proposed Eighth Cause of Action</u> Petitioner seeks to add an eighth cause of action for "Disinheritance of [Respondent] from the Estate of Joseph Eugene Collins" pursuant to Probate Code section 259 and Welfare and Institutions Code section 15610.30. Probate Code section 259 provides a remedy, not an independent cause of action. Specifically, Probate Code section 259 provides a forfeiture remedy in connection with an underlying cause of action for elder abuse. Furthermore, by its plain language, Probate Code section 259 is only available when the abused elder has passed away. It provides conditions by which a person "shall be deemed to have predeceased a decedent." (Emphasis added.) Notwithstanding the liberal policy in favor of granting leave to amend, the court has discretion to deny leave to amend where the proposed amendment is legally futile. (<i>Jo Redland Tr., U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th